HIRE PURCHASE AGREEMENT: WAREHOUSE FORKLIFT

This Hire Purchase Agreement (the "**Agreement**") is made on 20 October 2025 (the "**Effective Date**").

BETWEEN

(1) **BERAT MESIN PEMBIAYAAN SDN. BHD.** (Company No. SAMPLE-MY-7201), a company incorporated in Malaysia with its registered office at No. 27, Jalan Contoh Industri 5, Kawasan Perindustrian Contoh, 40000 Shah Alam, Selangor, Malaysia (the "**Financier**"); and

(2) **KOPI KITA SDN. BHD.** (Company No. SAMPLE-MY-1000), a company incorporated in Malaysia with its registered office at No. 1, Jalan Contoh Kopi, 50450 Kuala Lumpur, Malaysia (the "**Hirer**").

BACKGROUND

(A) The Financier provides financing for industrial and warehouse equipment.

(B) The Hirer roasts and distributes coffee to twelve cafe outlets and requires a forklift to move green bean sacks and palletised stock at its storage warehouse.

(C) The Financier has agreed to let, and the Hirer has agreed to hire, the Equipment with an option to purchase, on the terms of this Agreement.

1. DEFINITIONS

1.1 In this Agreement:

"**Equipment**" means the electric counterbalance forklift described in the Schedule, with its battery, charger, attachments, parts and accessories.

"**Cash Price**" means RM 96,000.00.

"**Deposit**" means RM 16,000.00.

"**Amount Financed**" means RM 80,000.00, being the Cash Price less the Deposit.

"**Hire Purchase Charges**" means RM 17,600.00, calculated at a flat rate of 5.50 per cent per annum on the Amount Financed for the Term.

"**Total Hire Purchase Price**" means the Cash Price plus the Hire Purchase Charges, being RM 113,600.00.

"**Monthly Instalment**" means RM 2,033.33, payable on the 20th day of each month.

"**Term**" means forty-eight (48) months from the Effective Date to 20 October 2029.

"**Other Agreement**" means any other agreement, facility or arrangement between the Financier or any company related to the Financier and the Hirer or any company related to the Hirer, now or in the future.

1.2 Headings do not affect interpretation. The Schedule forms part of this Agreement.

2. HIRE AND OPTION TO PURCHASE

2.1 The Financier lets and the Hirer hires the Equipment for the Term.

2.2 The Equipment remains the property of the Financier until all sums due under this

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Agreement have been paid in full. The Hirer has no right or interest in the Equipment other than as a hirer.

2.3 When the Hirer has paid the Total Hire Purchase Price and every other sum due under this Agreement and any Other Agreement, the Hirer may purchase the Equipment for RM 100.00 by written notice to the Financier.

3. DELIVERY AND INSPECTION

3.1 The Financier shall arrange delivery of the Equipment to the Hirer's warehouse at Klang, Selangor, on or about the Effective Date.

3.2 The Hirer shall inspect the Equipment on delivery and sign the delivery receipt. Signature of the receipt is conclusive evidence that the Equipment was delivered in good order and conforms to the description in the Schedule.

3.3 The Financier gives no warranty about the Equipment. The Financier shall assign to the Hirer the benefit of the supplier's warranty, to the extent that it can be assigned.

4. PAYMENT

4.1 The Hirer shall pay a Monthly Instalment on the 20th day of each month for forty-eight (48) months, beginning on 20 November 2025.

4.2 Payment shall be made in full, without set-off, counterclaim or deduction, by auto-debit from the Hirer's account. The Hirer shall maintain enough funds in that account on each due date.

4.3 Time is of the essence for every payment under this Agreement.

5. USE AND MAINTENANCE

5.1 The Hirer shall use the Equipment only at its warehouse, by trained and certified operators, and in accordance with the manufacturer's manual and the Occupational Safety and Health Act 1994.

5.2 The Hirer shall keep the Equipment in good repair, shall have it serviced at least every three (3) months by a service provider approved by the Financier, and shall pay all service, repair and replacement costs.

5.3 The Hirer shall not move the Equipment from the warehouse, or let any other person use it, without the written consent of the Financier.

5.4 The Financier may inspect the Equipment, and the Hirer's records relating to it, at any time during business hours.

6. RISK AND INSURANCE

6.1 The Equipment is at the Hirer's risk from delivery. Loss, theft or damage does not release the Hirer from any obligation under this Agreement.

6.2 The Hirer shall insure the Equipment for its full replacement value with an insurer approved by the Financier, and shall pay the premium. The Financier may take out the insurance itself and charge the premium and a handling fee of ten per cent (10%) of the premium to the Hirer.

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7. LATE PAYMENT AND COSTS

7.1 If the Hirer fails to pay any sum on its due date, the Hirer shall pay a late payment charge of three per cent (3%) per month on the overdue sum, calculated on a daily basis, from the due date to the date of full payment, both before and after judgment.

7.2 The Hirer shall pay on demand all costs and expenses incurred by the Financier in connection with this Agreement, including the cost of preparing, stamping and registering it, tracing, collection, repossession, storage and sale of the Equipment, and all legal costs on a solicitor and client basis, whether or not legal proceedings are begun.

8. CHANGES TO CHARGES

8.1 The Financier may at any time, on giving the Hirer written notice, vary the rate at which Hire Purchase Charges are calculated, the Monthly Instalment, the late payment charge and any fee payable under this Agreement, to reflect changes in its cost of funds or such other matters as the Financier considers relevant. The variation takes effect on the date stated in the notice.

8.2 The Hirer's continued use of the Equipment after the date stated in the notice is acceptance of the variation.

9. DEFAULT AND ACCELERATION

9.1 Each of the following is an event of default:

(a) the Hirer fails to pay any sum under this Agreement on its due date;

(b) the Hirer breaches any other term of this Agreement or of any Other Agreement;

(c) any representation made by the Hirer proves to have been incorrect;

(d) the Hirer defaults, or in the opinion of the Financier is likely to default, under any Other Agreement or any agreement with any other lender;

(e) the Hirer's directors, shareholders or financial condition change in a way the Financier considers adverse; or

(f) the Hirer ceases or threatens to cease business or is unable to pay its debts.

9.2 On an event of default, the whole of the Total Hire Purchase Price not yet paid, together with all other sums owed, becomes immediately due and payable without notice or demand.

9.3 On an event of default, the Financier may, without notice, enter any premises where the Equipment is believed to be, take possession of it, and sell or dispose of it as it thinks fit. The Hirer irrevocably authorises the Financier and its agents to enter for that purpose and releases the Financier from all claims for trespass or damage caused by entry and removal.

9.4 All amounts already paid by the Hirer under this Agreement shall be retained by the Financier as hire charges for the period of use and as agreed compensation for the Financier's loss, and the Hirer shall have no claim for their return, whether or not the Equipment is repossessed.

9.5 The Financier is not required to credit the proceeds of any sale of the Equipment against the sums owed by the Hirer before it has first recovered its costs and the Hirer remains liable for any shortfall.

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10. SET-OFF AND CROSS-DEFAULT

10.1 The Financier may at any time, without notice, combine or consolidate any account of the Hirer with the Financier and set off any sum owed by the Financier to the Hirer against any sum owed by the Hirer under this Agreement or under any Other Agreement.

10.2 A default under this Agreement is a default under every Other Agreement, and the Financier may enforce its rights under all of them together.

11. HIRER'S WAIVERS

11.1 The Hirer waives, to the fullest extent the law allows, every defence, set-off and counterclaim that it may have against the Financier, including any defect in or failure of the Equipment, any breach by the supplier, and any irregularity in the repossession, and agrees that it will pursue any such claim only against the supplier.

11.2 The Hirer agrees that a certificate signed by an officer of the Financier as to the amount owed is conclusive evidence of the amount, except for obvious error.

12. LIABILITY AND INDEMNITY

12.1 The Financier is not liable for any loss, damage, injury, delay or expense arising from the Equipment, its use, its failure or its repossession.

12.2 The Hirer shall indemnify the Financier against all claims, losses, liabilities and costs arising from the Equipment, its possession or its use.

13. TERMINATION BY THE HIRER

13.1 The Hirer may terminate this Agreement only with the Financier's written consent, and on such terms as the Financier may impose, including payment of the whole of the Total Hire Purchase Price without rebate.

14. DATA PROTECTION

14.1 The Financier may collect, use and disclose personal data of the Hirer's directors, employees and guarantors for credit assessment, collection, marketing and sharing with its related companies and agents, in accordance with the Personal Data Protection Act 2010.

15. NOTICES

15.1 Notices shall be in writing and sent to the address of the recipient at the head of this Agreement. A notice sent by ordinary post is deemed received two (2) days after posting. A notice sent by email is deemed received at the time of sending.

16. GOVERNING LAW AND JURISDICTION

16.1 This Agreement is governed by the laws of Malaysia.

16.2 The courts of Kuala Lumpur have jurisdiction over any dispute, but the Financier may also bring proceedings in any other court of competent jurisdiction.

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17. GENERAL

17.1 This Agreement is the entire agreement between the parties on its subject matter.

17.2 The Hirer may not assign or transfer its rights or obligations. The Financier may assign or transfer its rights to any person without notice to the Hirer and may disclose any information about the Hirer for that purpose.

17.3 No delay by the Financier in exercising a right is a waiver of it.

17.4 If any provision of this Agreement is found invalid, the others remain valid.

17.5 This Agreement may be signed in counterparts.

SCHEDULE

Equipment: electric counterbalance forklift, 2.5 tonne capacity, with side-shift and charger.

Serial No.: SAMPLE-FK-720001. Location: the warehouse of the Hirer at Klang, Selangor.

Cash Price: RM 96,000.00. Deposit: RM 16,000.00. Amount Financed: RM 80,000.00. Hire Purchase Charges: RM 17,600.00. Total Hire Purchase Price: RM 113,600.00. Term: 48 months. Monthly Instalment: RM 2,033.33 (the final instalment is RM 2,033.49). First instalment: 20 November 2025. Final instalment: 20 October 2029.

SIGNED by the parties on the Effective Date.

For and on behalf of BERAT MESIN PEMBIAYAAN SDN. BHD.

Signature: _____

Name: Encik Azman Contoh bin Roslan

Designation: Director

For and on behalf of KOPI KITA SDN. BHD.

Signature: _____

Name: Mr. Ravi Contoh

Designation: Chief Financial Officer

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